

JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION

CM24120001 / SPE7MX24R0056

X ORIGINAL

1. The Defense Logistics Agency, DLA Land and Maritime is the contracting activity. This acquisition is for an indefinite quantity contract (IQC) solicitation shall be a firm fixed price (FFP) long-term contract (LTC) which includes a three-year base period and two one-year option periods, which will be extended in one-year increments at the discretion of the Government. The item covered by this initiative will be procured under FAR Part 12- Acquisition of Commercial Items. The solicitation will be set aside for small business concerns as there is reasonable expectation that offers will be obtained from at least two responsible small concerns offering the product of at least two different small business concerns.

2. The action being approved is the acquisition of the following supplies based on other than full and open competition basis.

3. The supplies required to meet the using activity's needs are as follows:

NSN: 5985-01-381-6341 Mast AMC/AMSC – 1 C

Approved Sources:

US Tower (0BB47) P/N A3209788

Will Burt Co. (97246) P/N 4281201 & A3209788

Identify end item, weapon system, or class of item:

Weapon system: Line Item 0001 (Mast) supports the Patriot Missile.

ESTIMATED ANNUAL VALUE:	\$ [REDACTED]
ESTIMATED FIVE YEAR VALUE:	\$ [REDACTED]
MAXIMUM CONTRACT VALUE:	\$ [REDACTED]

4. The statutory authority permitting other than full and open competition is 10 U.S.C. 3204(a)(1) - Available from only one or a limited number of sources.

Brief narrative supporting the situation and weapon system: US Tower Corp. (0BB47) and Will-Burt Company (97246) are the approved sources for this NSN which supports the Patriot Missile.

5. If restricted to the only source(s) of supply, include source(s) name and CAGE code: The approved sources of supply are US Tower Corp. (0BB47) and Will-Burt Company (97246). Any company offering products other than the approved source(s) will need to follow the terms of the solicitation Procurement Note L04 – Offers for Part Numbered Items.

[REDACTED]

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The use of the authority is based on:

[X] AMC 1. Suitable for competitive acquisition for the second or subsequent time.

The use of the authority cited is based on (see table on Page 1 for AMSC breakout for this NSN):

[X] AMSC C. Part requires engineering source approval by the design control activity to maintain quality; existing unique design capability, engineering skills, and manufacturing knowledge by the qualified source(s) require acquisition of the part from the approved source(s); approved sources retain data rights, manufacturing knowledge or technical data not available to the Gov't and data/knowledge is essential to maintaining the quality of the part. An alternate source must qualify in accordance with the design control activity's procedures, as approved by the cognizant Government engineering activity. The qualification procedures must be approved by the Government engineering activity having jurisdiction over the part in the intended application. If one source is approved, AMCs 3, 4, or 5 are valid. If at least two sources are approved or if data is adequate for an alternate source to qualify in accordance with the design control activity's procedures, AMCs 1 or 2 are valid.

Product Specialist [REDACTED] confirmed the AMC/AMSC code; see technical certification attachment #1. The technical codes indicate these are the only approved sources and are uniquely qualified to supply the NSN coded AMSC C because they are the only sources with the data rights necessary to manufacture this NSN. Any company offering products other than the approved sources will need to follow the terms of the solicitation Procurement Notes L04- Offers for Part Numbered Items.

6. Efforts to ensure that offers are solicited from as many sources as practicable are:

[X] The acquisition will be synopsized on SAM.gov, for a period of 15 days.

[X] Solicitation will be posted on the DLA Internet Bid Board System (DIBBS) for a period of 30 days.

7. I hereby determine that the anticipated cost to the Government will be fair and reasonable. Cost and Pricing Data is not required per FAR 15.402-1 (b) (3) as this item will be solicited in accordance with FAR 12—Acquisition of Commercial Items. This item has been previously determined “commercial of-a type” under FAR 2.101. The Contracting Officer will determine that the contract award prices are fair and reasonable in accordance with FAR Subpart 15.4. The Contracting Officer will use historical prices, market prices (i.e. comparison based on marketplace or offers/pricing to other customers), market research, and/or pricing information provided by offerors.

8. Describe the market research conducted and the results:

Total number of vendors contacted: 2.

Names of companies which responded:

US Tower Corp. (CAGE 0BB47)

Will-Burt Company (CAGE 97246).

The following suppliers were asked to submit responses to market surveys sent out on August 20, 2024: US Tower Corp. (CAGE 0BB47) and Will-Burt Company (CAGE 97246). Procurement history shows that Will-Burt has provided this NSN since December 2003.

Techniques used to conduct survey:

- A Market Research questionnaire and spreadsheet was sent by email to both approved sources.

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- A sources sought was posted on SAM.gov on September 3, 2024, with a response date of September 10, 2024. The sources sought posting resulted in no additional companies expressing interest in making a proposal on this acquisition.

Types of information requested: The market survey requested vendor(s) state: Business size and type, if phased delivery would be required, state if the item is commercial, indicate the amount of option years they would be willing to accept; asked what components/raw materials impact pricing, whether they could provide the required marking for packaging

Summary of information received:

US Tower (0BB47):

US Tower Corp., a domestic, small-business manufacturer, is interested in providing a proposal for a long-term contract for this item.

[REDACTED]

[REDACTED]

Will-Burt Co. (97246):

Will-Burt Company, a domestic, small-business manufacturer, is interested in providing a proposal for a long-term contract for this item.

[REDACTED]

[REDACTED]

9. Additional facts supporting other than full and open competition are:

[X] Based upon the technical certification on file in DLA Land and Maritime - VEP technical data is not available and cannot be developed to permit full and open competition. The data presently available reflects the minimum needs of the Government.

10. A listing of sources, if any, indicating an interest in the acquisition is:

US Tower Corp. (CAGE 0BB47)

Will-Burt Company (CAGE 97246)

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11. The following actions will be taken to identify additional sources:

[X] The solicitation contains the DLAD Procurement Notes L04 Offers for Part Numbered Items and M06 Evaluation of Offers for Part Numbered Items.

12. The buyer searched the previous award listed in the contract history in Records Management in E-Procurement for the previous J&A, as required by DFARS PGI 206.304; see attachment #2- Previous J&A for Contract SPE7MX24D0078, Solicitation SPE7MX19R0068.

CONTRACTING OFFICER CERTIFICATION

I hereby certify that the information contained in this justification is accurate and complete to the best of my knowledge and belief. If not exceeding \$750,000.00, this signature serves as the approval.

WARNER.BRANDY.D
ANIELLE.1251897880

Digitally signed by
WARNER.BRANDY.DANIELLE.125
1897880
Date: 2024.10.11 12:48:16 -04'00'

Brandy Warner, Contracting Officer

APPROVAL / CERTIFICATION

I have reviewed and approve this justification. The estimated total value of the J&A is \$15,723,635.20

WIEBUSCH.JAM
IE.1251897324

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WIEBUSCH.JAMIE.1251897324
Date: 2024.11.22 15:51:08 -05'00'

Competition Advocate

JOHNSON.ROBE
RT.D.1230338090

Digitally signed by
JOHNSON.ROBERT.D.1230338090
Date: 2024.11.25 19:02:09 -05'00'

Head of the Contracting Activity (HCA)

APPROVAL REQUIREMENTS:

[X] Up to \$750,000	Contracting Officer
[X] Over \$750,000 to \$15,000,000	Competition Advocate
[X] Over \$15,000,00 to \$100,000.000	Head of Contracting Activity (HCA)

Attachment(s):

#1 – Tech Certificate

#2 – Previous J&A